

PART 1 — QUICKMD TOGETHER TERMS OF USE

Effective date: [DATE]

Please read these Terms carefully. They are a binding agreement between you and [QuickMD legal entity name] ("QuickMD," "we," "us"). By accessing or using QuickMD Together (the "Community"), you agree to these Terms.

You are not required to join the Community. Joining is entirely optional. Your treatment at QuickMD, your prescriptions, your appointments, and your standing as a patient do not depend in any way on whether you join, how much you post, or whether you ever post at all. If you do not want to join, close this page. Nothing changes.

1. What QuickMD Together is

QuickMD Together is an online space where verified QuickMD patients can read and write posts, reply to one another, and receive recognition badges for participation. It exists so that people in treatment can find and support one another.

In these Terms, "QuickMD Together" and "the Community" mean the same thing.

2. What QuickMD Together is not

Read this section closely. It describes the most important limits on the Community.

- **QuickMD Together is not medical care.** Nothing posted in the Community by any member, moderator, or QuickMD employee is medical advice, a diagnosis, a treatment recommendation, or a substitute for care from your clinician. Reading or following anything in the Community is your own decision and your own risk.
- **QuickMD Together is not a way to reach your care team.** Your clinician does not read the Community as part of your care. Do not post questions about your medication, your dose, your symptoms, your appointments, your prescriptions, your billing, or anything else about your own treatment. Those go to your clinician through [patient portal / phone number]. A post is not a message to QuickMD, and QuickMD is not on notice of anything because you posted it.
- **No clinician-patient relationship is created by QuickMD Together.** Moderators are QuickMD staff acting in a moderation role, not a clinical role, even if a moderator holds a clinical license. A moderator's decision to remove or leave up a post is not a clinical judgment about you, about your condition, or about anyone else.
- **QuickMD Together is not an emergency service and is not monitored around the clock.** See Section 7.
- **Community posts are not your medical record.** QuickMD does not maintain your posts as part of your chart and does not use them to make treatment decisions. Posts are retained separately under Section 12.

3. Eligibility

To join and remain in the Community you must:

1. Be at least 18 years old;
2. Be a current QuickMD patient in active treatment;
3. Be physically located in the United States;
4. Use one account only, registered in your own name, and not share your login with anyone; and
5. Not have been previously removed from the Community.

We verify patient status before granting access. If you stop being a QuickMD patient, your access may end. We may remove your access at any time under Section 9.

4. Your display name and what other members can see

You will choose a display name. **Choose one that does not identify you.** Do not use your real name, your initials plus your city, your workplace, a name you use elsewhere online, or anything else that could let someone connect your posts to you.

Every member of the Community can see:

- Your display name;
- Every post and reply you write;

- Your badges and your participation history; and
- The fact that you are a QuickMD patient, which means **the fact that you are receiving substance use disorder treatment**, because that is what QuickMD provides.

That last point is the one that matters most. Simply having an account tells every other member something private about you, before you write a single word.

5. This disclosure cannot be undone

Before you join, understand the following:

- **Other members can copy, screenshot, save, quote, and repeat anything you post.** We prohibit this in Section 6, and we enforce it, but we cannot prevent it and we cannot retrieve what has already been taken.
- **Deleting a post does not unshare it.** Once other members have read it, it is read. Deleting your account removes your profile going forward; it does not undo what was already disclosed.
- **We cannot guarantee that only QuickMD patients will ever see the Community.** We restrict access to verified patients and we take security seriously, but no access control is perfect.

If you would be seriously harmed by other people learning that you are in substance use disorder treatment, **do not join**. Part 2 of this packet describes those potential harms in detail. Read it before you decide.

6. Rules of participation

You agree not to post, upload, or transmit any of the following. This list is not exhaustive; we may remove anything that in our judgment is inconsistent with the purpose of the Community.

a. Identifying information — yours or anyone else's

- Your or anyone's full name, home or work address, phone number, email address, employer, school, or license plate
- Social media handles, usernames on other platforms, or links to personal profiles
- Photographs or videos showing faces, homes, workplaces, documents, pill bottles, prescription labels, or anything else identifying
- Your pharmacy, your prescriber's name, your clinic location, or your appointment times
- Any information about another person's health, treatment, or substance use, including another QuickMD patient

b. Moving conversations off the Community

The Community has no direct messaging, by design. Do not ask another member to contact you privately, do not offer your contact information, and do not propose meeting in person or connecting on another platform. This rule protects you. Off-platform contact is where the serious harm happens, and we have no ability to see it or stop it.

c. Medications and controlled substances

- Offering, requesting, selling, buying, trading, giving away, or arranging the transfer of any medication, including buprenorphine
- Asking where or how to obtain medication outside of a prescription
- Information about how to obtain prescriptions improperly, including from multiple prescribers
- Information about how to alter, defeat, or interfere with a drug test

d. Clinical advice to other members

Sharing your own experience is welcome. Telling another member what to do medically is not. Do not advise another member on dosing, on starting, stopping, changing, splitting, or tapering any medication, on combining medications or substances, or on managing withdrawal. Point them to their clinician instead.

e. Content describing substance use in operational detail

Do not post methods, quantities, combinations, sourcing, preparation, or administration techniques. Do not post content that promotes or encourages substance use.

f. Harm to yourself or others

Do not post threats against any person. Do not post content encouraging anyone to harm themselves. If you are in crisis, Section 7 tells you what to do.

g. Other prohibited content

- Harassment, bullying, intimidation, stalking, or threats
- Hateful content targeting any person or group
- Sexual content; any content sexualizing or directed sexually at a minor
- Impersonating QuickMD staff, a clinician, or another member
- Advertising, solicitation, recruiting for other programs or products, fundraising, or multi-level marketing
- Legal or financial advice to other members
- Automated access, scraping, bots, or bulk collection of Community content
- Copying, republishing, or distributing any other member's posts outside the Community, in any form, including screenshots

7. Content about crisis, self-harm, or suicide

If you are in danger right now, do not post. Call or text 988 (Suicide and Crisis Lifeline) or call 911.

The Community is not staffed continuously and is not designed to respond to emergencies. Response time to a post is not immediate and may be hours.

If content indicating crisis, self-harm, or suicidal thinking is posted, our automated systems remove it from public view promptly. It is then routed to QuickMD's 24/7 Support team, who will attempt to reach the member who posted it. Removal is for the protection of the person who posted and of other members, many of whom are in early recovery. Removal is not a judgment about you and does not affect your treatment.

By joining the Community, you agree that QuickMD may contact you by phone, text, or email about content you have posted, including content of this kind, and may share that content internally with QuickMD clinical and support staff. If you want us to be able to reach someone else on your behalf in an emergency, complete Part 3.

8. How moderation works, and its limits

You should understand exactly what we do and do not do:

- **Automated review.** Automated tools, including artificial intelligence, review Community content and remove posts that appear to contain identifying information, attempts to move a conversation off the Community, offers or requests for medication, or crisis content. This happens without human review first.
- **Human review.** QuickMD staff moderators review the Community and reports from members on a daily basis. Moderators are not on duty at all hours.
- **Limits.** Automated tools make mistakes in both directions. They remove posts they should not, and they miss posts they should catch. Human review is periodic, not continuous. **We do not promise to review every post, to catch every violation, or to catch anything within any particular time.** Content that violates these Terms may be visible to other members before it is removed, and may be copied by them before it is removed.
- **No duty to monitor.** Nothing in these Terms creates an obligation to monitor the Community, and our choice to moderate does not make us responsible for content we did not write.
- **Reporting.** If you see something that violates these Terms, report it using [reporting mechanism]. Reporting is the fastest way to get something removed.
- **Appeals.** If your post was removed and you believe it should not have been, contact [contact]. We will review it. [CONFIRM: appeal SLA.]

9. Enforcement

We may remove content, restrict posting, suspend, or permanently remove your Community access, with or without notice, for any violation of these Terms or for any conduct we judge to be harmful to other members. We may do this at our discretion and are not required to apply the same response in every case.

Removal from the Community is not termination of your treatment. These are separate. If you lose Community access, you remain a QuickMD patient and your care continues unchanged. [CONFIRM this is the operational policy in all cases, including threats against staff. If there are circumstances where Community conduct affects the treatment relationship, they must be stated here.]

10. Badges and recognition

The Community awards badges for participation and recovery milestones.

- Badges have **no cash value**. They cannot be redeemed, exchanged, sold, transferred, or converted into money, discounts, credit, free or reduced-cost services, merchandise, or anything else of value.
- Badges are **not payment or compensation** of any kind and are not consideration for anything.
- Badges are **not** awarded for referring, recruiting, or bringing in other patients, and are not tied to how much care you receive, what you are prescribed, how long you stay in treatment, or what you pay.
- Badges are not a clinical assessment, a measure of your progress in treatment, or an endorsement by any QuickMD clinician.
- Badges are **not conditioned on saying anything positive about QuickMD**. We do not award, withhold, or revoke badges based on whether a member praises or criticizes QuickMD.
- Participation is not a contest, sweepstakes, lottery, or game of chance. There is no prize and no entry.
- We may create, change, rename, or discontinue badges, and may remove a badge awarded in error or obtained through conduct violating these Terms.

11. Your content, and what we may and may not do with it

You keep ownership of what you post. You grant QuickMD a non-exclusive, worldwide, royalty-free license to host, store, display, reproduce, adapt for formatting, cache, back up, and remove your posts, and to sublicense those rights to our hosting and infrastructure vendors solely to operate the Community. This license lets us run the Community. It ends for future display when you delete a post or your account, subject to Section 12 (retention).

What we will not do without your separate written authorization:

- Use your posts, your display name, or your badges in any advertising, marketing, promotional material, testimonial, endorsement, case study, press statement, investor material, or social media post by QuickMD;
- Publish or display your posts outside the Community;
- Sell, license, or transfer your posts to any third party; or
- Use your posts to train, fine-tune, or improve any artificial intelligence model, other than the automated moderation tools described in Section 8 operating on Community content in real time, and we will not permit any vendor to do so.

Marketing use of patient information requires a separate HIPAA authorization from you under 45 C.F.R. § 164.508(a)(3). We will ask separately if we ever want it, and you are free to say no.

Criticism of QuickMD. You may post criticism, complaints, and negative experiences about QuickMD in the Community. We do not remove content solely because it is critical of us, and we do not condition participation, badges, or anything else on your not doing so. Content that is critical of QuickMD but also violates another rule in Section 6 may be removed for that other reason.

No trackers. We do not place third-party advertising, marketing, or analytics tracking technologies in the Community.

12. Retention, records, and legal process

- Community content, including removed and deleted posts, may be retained for [RETENTION PERIOD — see drafting notes] for safety, security, compliance, and legal purposes.
- Deleting your account removes your profile and posts from view by other members. It does not delete our retained copies within the retention period.
- **Community content may be subject to subpoena, court order, or other legal process.** Applicable law permits or requires disclosure of health information in certain judicial, administrative, and law enforcement proceedings, and to avert a serious and imminent threat to health or safety. If we receive legal process seeking your Community content, we will [NOTICE POLICY — decide and state it: notify you where permitted / object where grounds exist / etc.].
- Because Community content can be obtained in this way, and because other members can copy it, **assume that anything you post could one day be read by an employer, a licensing board, an insurer, a court, or a family member.** Part 2 explains this further.

13. Privacy and security

Our handling of your information is described in our Notice of Privacy Practices, available at [URL]. If we discover a breach of unsecured health information affecting the Community, we will notify affected members as required by law.

We restrict Community access to verified QuickMD patients and employ administrative, physical, and technical safeguards. We cannot guarantee that the Community will never be accessed by someone who should not have access, and we cannot control what other members do with what you post.

14. Accessibility and language

We aim to make the Community usable by people with disabilities. If you encounter a barrier, contact [contact] and we will work to accommodate you. [CONFIRM: WCAG conformance target; whether Community content is available in Spanish or other languages and whether that affects § 1557 or state language-access obligations.]

15. Disclaimers

The Community is provided "as is" and "as available." To the fullest extent permitted by law, QuickMD disclaims all warranties regarding the Community, including warranties of merchantability, fitness for a particular purpose, accuracy, and non-infringement, and does not warrant that the Community will be uninterrupted, secure, error-free, or free of content that violates these Terms.

These disclaimers apply only to the Community. They do not apply to, limit, or affect QuickMD's obligations to you as a patient, or the professional responsibilities of your clinicians. Your clinical care is governed by your treatment agreement and by applicable law, not by this Section.

16. Limitation of liability

To the fullest extent permitted by law, QuickMD's total liability arising out of or relating to the Community will not exceed [AMOUNT], and QuickMD will not be liable for indirect, incidental, consequential, special, exemplary, or punitive damages arising out of or relating to the Community.

This Section does not apply to: (a) any claim arising out of your clinical care or the professional conduct of any clinician; (b) QuickMD's gross negligence, recklessness, or willful misconduct; (c) claims under HIPAA or other health privacy laws; or (d) any liability that cannot be limited or excluded under applicable law.

[DRAFTING FLAG — LIMITATION OF LIABILITY] Exculpatory provisions in a healthcare context are void or narrowly construed in a number of states, and a cap on liability presented to patients in treatment for a stigmatized condition is a target. The carve-outs above are the minimum. Consider whether this section is worth keeping at all given the small realistic benefit and the risk that its presence supports an unconscionability or bad-faith narrative. My recommendation is to keep (a)–(d) and set the cap high or delete the cap.

17. Indemnification

You agree to indemnify QuickMD against claims arising out of your own violation of Section 6, including claims by another member arising from your disclosure of their information or your contact with them off the Community. [DRAFTING FLAG: consider deleting. Indemnity against patients in SUD treatment is not realistically collectible and reads badly to a jury and to a regulator. The deterrent value is in Section 6, not here.]

18. Dispute resolution

[DRAFTING FLAG — DECIDE BEFORE LAUNCH] Two options, and this should be a deliberate decision rather than boilerplate carried over from the patient terms.

Option A (recommended): No arbitration clause in the Community Terms. Community disputes are low-value and rare; the clause's real effect would be to create an argument that QuickMD tried to channel patient claims into arbitration through a social feature. Existing patient-agreement dispute terms continue to govern clinical claims.

Option B: Arbitration clause limited on its face to disputes arising out of Community participation, with an express carve-out for any claim arising out of clinical care, professional negligence, or health privacy, a clear opt-out window, and no fee-shifting. Confirm enforceability of a class waiver in each operating state.

19. Changes to these Terms

We may change these Terms. We will post the updated Terms with a new effective date and, for material changes, notify you in the Community and by [email/in-app] at least [NUMBER] days before they take effect. Continuing to use the Community after that date means you accept the changes. **If a change materially expands who can see your posts or how your posts may be used, we will obtain a new authorization from you under Part 2 rather than relying on your continued use.**

20. Termination by you

You may leave the Community at any time by [mechanism]. Leaving the Community does not affect your treatment. You may also revoke your Part 2 authorization; see Part 2, Section 7.

21. Governing law; miscellaneous

These Terms are governed by the laws of [STATE], without regard to conflict-of-laws principles. [CONFIRM: choice of law against consumer-protection and health-privacy statutes in states where patients reside; these often cannot be contracted around.] If any provision is unenforceable, the rest remains in effect. These Terms, together with Parts 2 and 3, are the entire agreement regarding the Community and do not modify your treatment agreement or QuickMD's Notice of Privacy Practices.

22. Contact

Questions about the Community: [EMAIL / PHONE] Report a post or a member: [MECHANISM] Privacy questions or complaints: [PRIVACY OFFICER CONTACT] Clinical questions: [PATIENT PORTAL / PHONE] — not the Community

☐ I have read and agree to the QuickMD Together Terms of Use.

Name: _____ Date: _____

PART 2 — AUTHORIZATION FOR USE AND DISCLOSURE OF PROTECTED HEALTH INFORMATION IN QUICKMD TOGETHER

This is a separate document. Do not sign it unless you have read all of it.

This form authorizes QuickMD to disclose health information about you to other QuickMD patients. It is required by federal law (45 C.F.R. § 164.508) before QuickMD can operate a space where other patients can see information about you.

1. Who is authorized to make the disclosure

[QuickMD legal entity name], [address], and its workforce.

2. To whom the disclosure may be made

Other individuals who have been verified as QuickMD patients and granted access to QuickMD Together. This is a group whose membership changes over time. You will not be told who is in it, and you cannot approve or exclude individual members.

Also: QuickMD's vendors that host and operate the Community, under written agreements requiring them to protect your information and prohibiting them from using it for their own purposes.

3. What information may be disclosed

- **The fact that you are a QuickMD patient**, which discloses that you are receiving treatment for a substance use disorder, including treatment with medication for opioid use disorder.
- Your display name, your badges, and your participation history.
- **Everything you choose to write in the Community.** You control this part. Whatever you type and post is what gets disclosed, which may include your substance use history, your treatment, your medications, your mental health, your relapses, your family, your work, and anything else you decide to write.

QuickMD will not post anything about you, from your medical record or otherwise, into the Community. Only you do that. But the fact of your membership is disclosed by QuickMD, the moment your account is created.

4. Purpose of the disclosure

At your request, so that you can participate in QuickMD Together.

5. What could happen as a result — read this before signing

Information about substance use disorder treatment is used against people. If your membership or your posts become known outside the Community, whether because another member copies them, because of a security incident, or because they are obtained through legal process, the consequences can be serious and permanent. Real examples include:

- **Employment.** Being passed over, disciplined, or fired.
- **Professional licensing.** Inquiry or action by a board licensing physicians, nurses, pharmacists, attorneys, teachers, pilots, or others.
- **Commercial driving.** Consequences under federal and state commercial driver medical certification rules.
- **Child custody and family court.** Use against you in a custody, visitation, divorce, or dependency proceeding.
- **Criminal and probation matters.** Use in a criminal case, a probation or parole proceeding, or a diversion program.
- **Immigration.** Adverse consequences in immigration or naturalization proceedings.
- **Firearms.** Consequences for firearm eligibility under federal law.
- **Insurance.** Effects on life, disability, or long-term care underwriting.
- **Housing.** Effects on a lease, an application, or a housing program.
- **Personal.** Family members, partners, employers, neighbors, or others learning about your treatment before you were ready to tell them.

QuickMD cannot protect you from these consequences and is not responsible for them if they result from another member's misuse of what you posted or from legal process.

☐ I have read the section above. I understand the risks described and I accept them. Initials: _____

6. Expiration

This authorization expires on the earlier of:

- [TWELVE (12)] months from the date you sign it, unless you renew it; or
- the date you cease to be a QuickMD patient; or
- the date you revoke it.

QuickMD will ask you to renew before it expires. If you do not renew, your Community access ends and your profile and posts are removed from view by other members.

[DRAFTING FLAG] A finite expiration with affirmative renewal is deliberate. It creates a periodic re-consent moment, which is the strongest available answer to a claim that a patient in early recovery or acute withdrawal was not capable of weighing this decision at intake. Twelve months is a starting point; consider a shorter first term.

7. Your right to revoke

You may revoke this authorization at any time. To revoke, [send written notice to ADDRESS / EMAIL / use the in-app mechanism]. Revocation is effective when we receive it.

What revocation does: we stop disclosing information about you to other members going forward, remove your profile and posts from view by other members, and end your Community access.

What revocation cannot do: it cannot undo disclosures already made. Members who already read your posts have already read them. Members who already copied your posts still have the copies. Revocation does not reach anything already disclosed while this authorization was in effect, and does not delete our retained records within the retention period described in the QuickMD Together Terms of Use, Section 12.

8. Redisclosure

Information disclosed under this authorization is no longer protected by the HIPAA Privacy Rule in the hands of the individuals who receive it. Other Community members are not healthcare providers and are not bound by HIPAA. The Community Terms of Use prohibit them from copying or republishing your posts, and QuickMD enforces that rule, but QuickMD cannot control what they do and cannot recover information they have taken.

9. This authorization is voluntary and is not a condition of anything

- **QuickMD will not condition your treatment, payment, enrollment, or eligibility for benefits on whether you sign this authorization.** 45 C.F.R. § 164.508(c)(2)(ii).
- If you do not sign, you cannot participate in the Community. Nothing else changes. Your care, your prescriptions, your appointments, your costs, and your standing as a patient are exactly the same.
- No one at QuickMD may ask you to sign this, suggest that signing would help your treatment, or treat you differently because you declined.

10. Copy

You will receive a copy of this signed authorization. [Delivery mechanism.]

By signing below I confirm that:

- I have read this entire authorization, including Section 5;
- I understand what information will be disclosed, to whom, and that the disclosure cannot be undone;
- I am signing voluntarily, and no one has conditioned my treatment on signing; and
- I am at least 18 years old.

Signature: _____

Printed name: _____

Date: _____

If signed by a personal representative, describe the representative's authority: _____

PART 3 — OPTIONAL EMERGENCY CONTACT DESIGNATION

This is optional. You do not have to complete it. Your Community access and your treatment do not depend on it.

If you post content indicating that you may be in crisis, QuickMD's 24/7 Support team will attempt to reach you directly. If we cannot reach you and we believe you may be in immediate danger, it helps us to have someone we can call.

☐ **I authorize QuickMD to contact the person named below if QuickMD is unable to reach me and believes I may be at risk of serious harm.**

Name: _____ Relationship: _____ Phone: _____

What we would tell this person: only that we are trying to reach you and are concerned about your safety, and what they can do to help. We will not describe your treatment, your medications, your diagnosis, or what you posted, unless you tell us below that we may.

☐ **Optional: QuickMD may also tell this person that I am a QuickMD patient receiving treatment for a substance use disorder.**

☐ **I decline to designate an emergency contact.**

You may change or withdraw this designation at any time by [mechanism].

Separately from this designation, applicable law permits QuickMD to disclose information to prevent or lessen a serious and imminent threat to your health or safety or that of others, including to emergency services. 45 C.F.R. § 164.512(j). This designation is meant to help us help you, not to replace that.

Signature: _____ Date: _____